

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DEE LOYD and HERMAN GOSS,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER XAVIER LARINO (shield # 13312),

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
March 16, 2020



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

Index No. _____
Purchased 3-16-20

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DEE LOYD and HERMAN GOSS,

Plaintiff

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER XAVIER LARINO (shield # 13312),

Defendants.

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Plaintiffs DEE LOYD and HERMAN GOSS, by their attorneys, THE LAW OFFICES
OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiffs DEE LOYD and HERMAN GOSS were residents of the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER XAVIER LARINO (shield # 13312) ("P.O. LARINO"), was and is a police officer employed by Defendants.

BACKGROUND

5. On January 9, 2019, at approximately 1:00 p.m., in the vicinity of 1023 Rev. James A. Polite Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. LARINO, violently handcuffed both Plaintiffs and intentionally and falsely accused the Plaintiffs of having committed the crimes of Criminal Possession of a Controlled Substance in the 3rd Degree, Criminal Possession of a Weapon in the Second Degree and related charges.
6. On or about January 10, 2019, a criminal complaint was issued at the directive of Defendants and a criminal action against the Plaintiffs' commenced.
7. The Plaintiffs remained in custody until they were released on or about January 15, 2019.
8. The Plaintiffs had to defend against false charges until the criminal matter was terminated in their favor on January 15, 2019.

PROCEDURAL POSTURE

9. On January 20, 2019, Plaintiff DEE LOYD served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. On February 28, 2019, Plaintiff HERMAN GOSS served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notices and defendant CITY has failed to pay or adjust this claim.
12. A 50-H hearing has been held for each Plaintiff.
13. This action has been commenced within one year and ninety days after the cause of action accrued.
14. The Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

DEE LOYD**FIRST CAUSE OF ACTION FOR PLAINTIFF DEE LOYD:****FALSE IMPRISONMENT**

15. Paragraphs 1-14 are incorporated by reference as fully set forth herein.
16. Plaintiff DEE LOYD was aware of his arrest and confinement as described in paragraphs 5-7, and Plaintiff DEE LOYD did not consent to that arrest or confinement.
17. Defendants intended to confine Plaintiff DEE LOYD and the confinement was not privileged or authorized by any warrant, order or other legal right.
18. As a result of being falsely imprisoned by the Defendants, Plaintiff DEE LOYD sustained multiple injuries. Plaintiff DEE LOYD was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION FOR PLAINTIFF DEE LOYD:**MALICIOUS PROSECUTION**

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.
20. In arresting Plaintiff DEE LOYD, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff DEE LOYD. The Defendants, including P.O.

LARINO, provided incomplete and misleading information to the NYPD and Bronx District Attorney's Office to ensure that Plaintiff DEE LOYD would be arrested and prosecuted.

21. All charges pending against Plaintiff DEE LOYD were dismissed and sealed upon the application of the District Attorney on January 15, 2019.
22. As a result of being maliciously prosecuted by the Defendants, Plaintiff DEE LOYD sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION FOR PLAINTIFF DEE LOYD:

BATTERY

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.
24. When P.O. LARINO violently grabbed Plaintiff DEE LOYD, searched Plaintiff and arrested Plaintiff, he subjected Plaintiff DEE LOYD to a harmful or offensive bodily contact. P.O. LARINO intended to make that contact without the consent of Plaintiff DEE LOYD.
25. As a result of being battered by P.O. LARINO, Plaintiff DEE LOYD sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION FOR PLAINTIFF DEE LOYD:**ASSAULT**

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. P.O. LARINO, acting as the agent, servant and employee of the Defendants, placed Plaintiff DEE LOYD in apprehension of imminent harmful or offensive contact when he approached Plaintiff, violently grabbed Plaintiff and handcuffed Plaintiff.
28. As a result of being assaulted by P.O. LARINO, Plaintiff DEE LOYD sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

HERMAN GOSS**FIFTH CAUSE OF ACTION FOR PLAINTIFF HERMAN GOSS:****FALSE IMPRISONMENT**

29. Paragraphs 1-28 are incorporated by reference as fully set forth herein.
30. Plaintiff HERMAN GOSS was aware of his arrest and confinement as described in paragraphs 5-7, and Plaintiff HERMAN GOSS did not consent to that arrest or confinement.
31. Defendants intended to confine Plaintiff HERMAN GOSS and the confinement was not privileged or authorized by any warrant, order or other legal right.
32. As a result of being falsely imprisoned by the Defendants, Plaintiff HERMAN GOSS sustained multiple injuries. Plaintiff HERMAN GOSS was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SIXTH CAUSE OF ACTION FOR PLAINTIFF HERMAN GOSS:MALICIOUS PROSECUTION

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. In arresting Plaintiff HERMAN GOSS, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff HERMAN GOSS. The Defendants, including P.O. LARINO, provided incomplete and misleading information to the NYPD and Bronx District Attorney's Office to ensure that Plaintiff HERMAN GOSS would be arrested and prosecuted.
35. All charges pending against Plaintiff HERMAN GOSS were dismissed and sealed upon the application of the District Attorney on January 15, 2019.
36. As a result of being maliciously prosecuted by the Defendants, Plaintiff HERMAN GOSS sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

SEVENTH CAUSE OF ACTION FOR PLAINTIFF HERMAN GOSS:BATTERY

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.
38. When P.O. LARINO violently grabbed Plaintiff HERMAN GOSS, searched Plaintiff and arrested Plaintiff, he subjected Plaintiff HERMAN GOSS to a harmful or offensive bodily contact. P.O. LARINO intended to make that contact without the consent of Plaintiff HERMAN GOSS.
39. As a result of being battered by P.O. LARINO, Plaintiff HERMAN GOSS sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION FOR PLAINTIFF HERMAN GOSS:ASSAULT

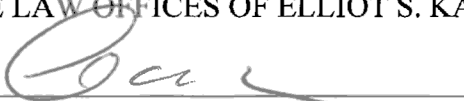
40. Paragraphs 1-39 are incorporated by reference as though fully set forth herein.
41. P.O. LARINO, acting as the agent, servant and employee of the Defendants, placed Plaintiff HERMAN GOSS in apprehension of imminent harmful or offensive contact when he approached Plaintiff, violently grabbed Plaintiff and handcuffed Plaintiff.
42. As a result of being assaulted by P.O. LARINO, Plaintiff HERMAN GOSS sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

WHEREFORE, each Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
March 16, 2020

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
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THE CITY OF NEW YORK,
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Defendants
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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for the Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
March 16, 2020



ELLIOT S. KAY